



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

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BY:

MA. JILINA B. JUTILO
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 29TH REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON
FEBRUARY 16, 2026

PRESENT:

Hon. Jane V. Plaza		Municipal Vice- Mayor/ Presiding Officer
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REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Harvey S. Manawatao		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Michael C. Escuyos		SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ON LEAVE:

REGULAR SANGGUNIANG BAYAN MEMBER:

Hon. Tanie A. Quillano		SB Member
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ORDINANCE NO. 27
Series of 2026

**"AN ORDINANCE ESTABLISHING GUIDELINES IN THE UTILIZATION AND APPLICATION OF EARLY
WARNING DEVICES DURING IMPENDING DISASTERS IN THE MUNICIPALITY OF CARMEN, SURIGAO
DEL SUR AND PROVIDING PENALTIES FOR VIOLATIONS THEREOF"**

Author: Hon. Harvey S. Manawatao

Enacted: All Members Present

EXPLANATORY NOTE

WHEREAS, the Local Government Unit of Carmen, Surigao del Sur recognizes the critical importance of early warning systems in mitigating the impact of disasters and protecting the lives and properties of its constituents;

WHEREAS, the effective utilization of early warning devices is essential for disseminating timely and accurate information about impending disasters enabling communities to take appropriate preparedness measures;

WHEREAS, the clear guidelines are necessary to ensure that early warning devices are used properly, consistently and in accordance with established protocols;

WHEREAS, the proper maintenance, testing and public awareness of early warning systems are crucial for their effectiveness;

WHEREAS, Republic Act No 10121 otherwise known as the Philippine Disaster Risk Reduction and Management Act of 2010 mandates all local government units to establish and implement effective early warning systems;

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

ARTICLE I. SHORT TITLE

Section 1. SHORT TITLE- This Ordinance shall be known as the Early Warning Device Utilization Ordinance of Carmen, Surigao del Sur.

ARTICLE II. DECLARATION OF POLICY

Section 2. DECLARATION OF POLICY- It is hereby the declared policy of the Municipality of Carmen, Surigao del Sur to ensure the effective and responsible utilization of Early Warning Devices to provide timely and accurate information to the community, enabling them to prepare for and mitigate the impacts of impending disasters.

ARTICLE III. DEFINITION OF TERMS

Section 3. DEFINITION OF TERMS- For the purpose of this Ordinance, the following terms shall be defined as follows:

- 1) **EARLY WARNING DEVICE**- any equipment, technology or system used to detect, monitor and disseminate information about impending disasters including but not limited to sirens, public address systems, weather monitoring instruments and communication devices.
- 2) **EARLY WARNING SYSTEM**- a set of capacities needed to generate and disseminate timely and meaningful information to enable individuals, communities and organizations threatened by a hazard to prepare and to act appropriately and in sufficient time to reduce the possibility of harm or loss.
- 3) **TRIGGERING POINTS**- a specific thresholds or conditions that activate the early warning devices indicating an imminent threat of a disaster.
- 4) **DISSEMINATING PROTOCOL**- the established procedures for communicating early warning information to the public including the channels, methods and responsible personnel.
- 5) **RESPONSIBLE AGENCY**- the Municipal Risk Reduction and Management Office (MDRRMO) or any other designated Agency responsible for the operation and maintenance of the early warning devices

ARTICLE IV. COVERAGE

Section 4. COVERAGE- This Ordinance shall apply to all early warning devices owned, operated

or maintained by the Local Government of Carmen, Surigao del Sur as well as to all personnel and individuals involved in the operation, maintenance and dissemination of early warning information.

ARTICLE V. GUIDELINES FOR UTILIZATION AND APPLICATION

Section 5. TRIGERRING POINTS- This activation of early warning devices shall be based on predetermined triggering points established by the MDRRMO in coordination with relevant agencies. These triggering points shall be based on scientific data, historical records and local knowledge of disaster risk like typhoon that reaches category 1 and flooding that reaches the level to two meters above normal and others.

Section 6. DISSEMINATION PROTOCOL- The Dissemination Protocol of Early Warning Information shall follow a clear and established protocol which shall include:

- 1) The responsible personnel for activating and disseminating the warning.
- 2) The channels and methods for disseminating the warnings like sirens, public address system, SMS Alert and social media.
- 3) The specific information to be included in the warning message like the type of hazard, expected time of impact, affected areas and recommended actions.
- 4) The frequency and duration of the warning signal.
- 5) The procedures for confirming receipt of the warning by affected communities.

Section 7. PUBLIC AWARENESS- The Municipal Government of Carmen, Surigao del Sur through the MDRRMO shall conduct regular public awareness campaigns to educate residents about the early warning system including the meaning of the warning signals, the appropriate actions to take and the location of evacuation center.

ARTICLE VI. RESPONSIBILITIES

Section 8. RESPONSIBILITIES OF THE MDRRMO- The MDRRMO shall have the following responsibilities:

- 1) Develop and maintain an early warning system including the selection, installation and maintenance of early warning devices.
- 2) Establish and update the triggering points and dissemination protocols.
- 3) Conduct regular testing and maintenance of early warning devices.
- 4) Disseminate early warning information to the public in a timely and accurate manner.
- 5) Conduct public awareness campaigns and training programs.
- 6) Coordinate with National, Regional and Provincial Agencies for technical assistance and support.

Section 9. RESPONSIBILITIES OF BARANGAY OFFICIALS- The Barangay Officials shall have the following responsibilities:

- 1) Assist in disseminating early warning information to residents within their barangays.

- 2) Ensure that residents understand the meaning of the Early Warning Devices, the Warning Signals and the appropriate actions to take.
- 3) Assist in the evacuation of residents to designated evacuation centers.
- 4) Report any malfunctions or damage of early warning devices to the MDRRMO.

ARTICLE VII. PROHIBITED ACTS

Section 10. PROHIBITED ACTS- The following acts are hereby prohibited:

- 1) Vandalizing, damaging or tampering with any early warning devices.
- 2) Intentionally disseminating false or misleading information about an impending disaster.
- 3) Obstruction or interfering with the dissemination of early warning information.
- 4) Disregarding or ignoring official early warning signals and instructions.

ARTICLE VIII. PENALTIES

Section 11. PENALTIES- Any person or entities found violating any provision of this Ordinance shall be subject to the following penalties:

FIRST OFFENSE- a fine of One Thousand Pesos (Php1,000.00)

SECOND OFFENSE- a fine of Two Thousand Pesos (Php2,000.00)

THIRD and SUCCEEDING OFFENSES- a fine of Two Thousand Five Hundred Pesos (Php2,500.00) or imprisonment of not more than thirty (30) days or both at the discretion of the court.

ARTICLE IX. FUNDING

Section 12. FUNDING- The funds necessary for the implementation of this Ordinance including the purchase, installation, maintenance and operation of Early Warning Devices and the conduct of public awareness campaigns shall be sourced out from the following:

- 1) From the 5% Local Disaster Risk Reduction and Management Fund- LDRRMF as being mandated by the Republic Act No. 10121 otherwise known as the Philippine Risk Reduction and Management Act of 2010.
- 2) The Municipal Government General Fund.
- 3) From a grants or donations from the National Government, Regional Government and the Provincial Government and other international organizations.

ARTICLE X. SEPARABILITY CLAUSE

Section 13. SEPARABILITY CLAUSE- If for any reason, any section or provision of this Ordinance is declared unconstitutional or invalid, the other sections or provisions not affected thereby shall remain in full force and effect.

ARTICLE XI. REPEALING CLAUSE

Section 14. REPEALING CLAUSE- All Ordinances, Rules and Regulations or part thereof inconsistent with the provisions of this Ordinance are hereby repealed or modified accordingly.

ARTICLE XII. EFFECTIVITY CLAUSE

Section 15. EFFECTIVITY CLAUSE- This Ordinance shall take effect twenty-one (21) days after its posting in at least Three conspicuous places in the Barangay and in the Local Government Unit of Carmen, Surigao del Sur.

ENACTED this 16th day of February, 2026 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


JANEY V. PLAZA
Municipal Vice- Mayor/
Presiding Officer

APPROVED:


NESTOR S. VALEROSO
Municipal Mayor

02/26/2026